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Sequence Number: 01-21-26
Rule ID(s): 10516
File Date: 1/15/2026
Effective Date: 4/15/2026

Rulemaking Hearing Rule(s) Filing Form

Rulemaking Hearing Rules are rules filed after and as a result of a rulemaking hearing (Tenn. Code Ann. § 4-5-205).

Pursuant to Tenn. Code Ann. § 4-5-229, any new fee or fee increase promulgated by state agency rule shall take effect on July 1, following the expiration of the ninety (90) day period as provided in § 4-5-207. This section shall not apply to rules that implement new fees or fee increases that are promulgated as emergency rules pursuant to § 4-5-208(a) and to subsequent rules that make permanent such emergency rules, as amended during the rulemaking process. In addition, this section shall not apply to state agencies that did not, during the preceding two (2) fiscal years, collect fees in an amount sufficient to pay the cost of operating the board, commission or entity in accordance with § 4-29-121(b).

Agency/Board/Commission:	Department of Transportation
Division:	Traffic Design
Contact Person:	Leslie South, General Counsel
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Revision Type (check all that apply):

_x_ Amendment
____ New
____ Repeal

____ Content based on previous emergency rule filed on _____
____ Content is identical to the emergency rule

Rule(s) (**ALL** chapters and rules contained in filing must be listed here. If needed, copy and paste additional tables to accommodate multiple chapters. Please make sure that **ALL** new rule and repealed rule numbers are listed in the chart below. Please enter only **ONE** Rule Number/Rule Title per row.)

Chapter Number	**Chapter Title**
1680-03-01	Adoption of the Tennessee Manual on Uniform Traffic Control Devices for Streets and Highways
Rule Number	**Rule Title**
1680-03-01-.02	Adoption of Manual on Uniform Traffic Control Devices

Place substance of rules and other info here. Please be sure to include a detailed explanation of the changes being made to the listed rule(s). Statutory authority must be given for each rule change. For information on formatting rules go to https://sos.tn.gov/publications/services/rulemaking-guidelines.

Chapter 1680-03-01
Uniform Traffic Control Devices
Amendments

1680-03-01-.02 Adoption of Manual on Uniform Traffic Control Devices is amended by deleting the rule in its entirety, but not the rule title, and substituting instead the following language, so that as amended the new rule shall read:

The current edition of the United States Department of Transportation, Federal Highway Administration, Manual on Uniform Traffic Control Devices for Streets and Highways (MUTCD), 11th Edition, 2023, is hereby adopted in its entirety and is incorporated herein by reference, with the following exception:

(1) Section 4C.01 Paragraph 20, of the 11th Edition, 2023, is not adopted and the following text shall be adopted in its place:

20 The safe and efficient movement of all road users is the primary consideration in the engineering study to determine whether to install a traffic control signal or to install some other type of control or roadway configuration. Installation of a traffic control signal does not necessarily result in improved safety in every case. In some cases, the installation of a traffic control signal at an inappropriate location could adversely impact safety for one or more types of road users. The purpose of the engineering study is to evaluate all of the factors that are relevant to a specific location.

Authority: T.C.A. § 54-5-108(b).

* If a roll-call vote was necessary, the vote by the Agency on these rulemaking hearing rules was as follows:

Board Member	Aye	No	Abstain	Absent	Signature (if required)

I certify that this is an accurate and complete copy of rulemaking hearing rules, lawfully promulgated and adopted by the Tennessee Department of Transportation on 01/06/2026 and is in compliance with the provisions of T.C.A. § 4-5-222.

I further certify the following:

Notice of Rulemaking Hearing filed with the Department of State on: *(08/01/2025)*

Rulemaking Hearing(s) Conducted on: (add more dates). *(09/25/2025)*

Date: 01/06/2026

Signature: Leslie South

Name of Officer: Leslie South

Title of Officer: General Counsel

Agency/Board/Commission: Department of Transportation

Rule Chapter Number(s): 1680-03-01

All rulemaking hearing rules provided for herein have been examined by the Attorney General and Reporter of the State of Tennessee and are approved as to legality pursuant to the provisions of the Administrative Procedures Act, Tennessee Code Annotated, Title 4, Chapter 5.

Jonathan Skrmetti
Attorney General and Reporter

January 14, 2026
Date

Department of State Use Only

Filed with the Department of State on: 1/15/2026

Effective on: 4/15/2026

Tre Hargett
Secretary of State

RECEIVED

Jan 15 2026, 2:07 pm

Secretary of State
Division of Publications

Public Hearing Comments

One copy of a document that satisfies T.C.A. 4-5-222 must accompany the filing.

[Insert transcript here.]

TDOT received no comments on this rulemaking. TDOT filed a Notice of Rulemaking Hearing on August 1, 2025 and held a public rulemaking hearing on September 25, 2025. No members of the public attended the hearing. Prior to the hearing, TDOT shared copies of the Notice of Rulemaking Hearing with relevant industry groups and received no comments from this outreach. The Notice of Rulemaking Hearing also was posted on the TDOT website.

Regulatory Flexibility Addendum

Pursuant to T.C.A. §§ 4-5-401 through 4-5-404, prior to initiating the rule making process, all agencies shall conduct a review of whether a proposed rule or rule affects small business.

(Insert statement here)

(1) The extent to which the rule or rules may overlap, duplicate, or conflict with other federal, state, and local governmental rules.

The rule does not conflict with other federal, state, or local government rules.

(2) Clarity, conciseness, and lack of ambiguity in the rule or rules.

This rule amendment establishes clarity, conciseness, and a lack of ambiguity in the rule.

(3) The establishment of flexible compliance and/or reporting requirements for small businesses.

This rule amendment does not establish any reporting requirements for small businesses.

(4) The establishment of friendly schedules or deadlines for compliance and/or reporting requirements for small businesses.

There are no such requirements contained in the rule amendment.

(5) The consolidation or simplification of compliance or reporting requirements for small businesses.

There are no such requirements contained in the rule amendments.

(6) The establishment of performance standards for small businesses as opposed to design or operational standards required In the proposed rule.

There are no such requirements contained in the rule amendment.

(7) The unnecessary creation of entry barriers or other effects that stifle entrepreneurial activity, curb innovation, or increase costs.

This rule amendment creates no entry barriers or other effects that would stifle legitimate entrepreneurial activity, curb innovation, or increase costs for legitimate businesses.

Impact on Local Governments

Pursuant to T.C.A. §§ 4-5-220 and 4-5-228, "On any rule and regulation proposed to be promulgated, the proposing agency shall state in a simple declarative sentence, without additional comments on the merits or the policy of the rule or regulation, whether the rule or regulation may have a projected financial impact on local governments. The statement shall describe the financial impact in terms of increase in expenditures or decrease in revenues."

(Insert statement here)

This rule amendment does not have a projected increased or decreased financial impact on local governments.

Additional Information Required by Joint Government Operations Committee

All agencies, upon filing a rule, must also submit the following pursuant to T.C.A. § 4-5-226(i)(1).

(A) A brief summary of the rule and a description of all relevant changes in previous regulations effectuated by such rule;

T.C.A. § 54-5-108 provides that TDOT has full power, and it is made its duty to formulate and adopt a manual for the design and location of signs, signals, markings, and for posting of traffic regulations on or along all streets and highways in Tennessee, and no signs, signals, markings or postings of traffic regulations shall be located on any street or highway in the state regardless of type or class of the governmental agency having jurisdiction of the streets and highways, except in conformity with the provisions contained in the manual. The manual authorized by T.C.A. § 54-5-108 is adopted in TDOT Chapter 1680-03-01 and currently is the 2009 Ed. MUTCD; but, this chapter needs to be amended to instead adopt the 11th Ed. MUTCD. 23 CFR § 655.603(b)(3) requires the proposed rule amendment to adopt the 11th Ed. MUTCD. Adoption of the latest edition of the MUTCD is required by federal law at 23 CFR § 655.603 in order to prevent a withholding of federal highway funds as authorized by 23 C.F.R. § 1.36.

Key items in this 11th Ed. MUTCD update that differ from the prior version include the following:

- Incorporation of provisional traffic control devices currently under FHWA Interim Approval, including pedestrian-actuated rectangular rapid-flashing beacons at uncontrolled marked crosswalks, green-colored pavement for bicycle lanes, red-colored pavement for transit lanes, and a new traffic signal warrant based on crash experience;
- Improvements to safety and accessibility for pedestrians, including the location of pushbuttons at signalized crosswalks, crosswalk marking patterns, and accommodations in work zones;
- Expanded traffic control devices to improve safety and operation for bicyclists, including intersection bicycle boxes, two-stage turn boxes, bicycle traffic signal faces, and a new design for the U.S. Bicycle Route sign;
- Additional signing options for direction to electric vehicle charging services;
- Considerations for agencies to prepare roadways for automated vehicle technologies and to support the safe deployment of automated driving systems;
- Clarifications on patented and proprietary traffic control devices to foster and promote innovation; and
- Safety and operational improvements, including revised procedures for the posting of speed limits, new criteria for warning signs for horizontal alignment changes, and new application of traffic control devices for part-time travel on shoulders to manage congestion.

(B) A citation to and brief description of any federal law or regulation or any state law or regulation mandating promulgation of such rule or establishing guidelines relevant thereto;

The proposed rule amendment would amend TDOT Chapter 1680-03-01 in accordance with T.C.A. § 54-5-108(b) that provides it is TDOT's duty to adopt the newly updated manual for the design and location of signs, signals, markings, and for posting of traffic regulations on or along all streets and highways in Tennessee. The manual authorized by T.C.A. § 54-5-108(b) is adopted in TDOT Chapter 1680-03-01 and currently is the 2009 Ed. MUTCD; but, this chapter needs to be amended to instead adopt the 11th Ed. MUTCD, the latest version.

23 CFR § 655.603(b)(3) requires the proposed rule amendment to adopt the 11th Ed. MUTCD. Adoption is required by federal law in order to prevent a withholding of federal highway funds.

(C) Identification of persons, organizations, corporations or governmental entities most directly affected by this rule, and whether those persons, organizations, corporations or governmental entities urge adoption or rejection of this rule;

Entities who own or maintain transportation facilities open to the public and are required to comply with the MUTCD when managing traffic control devices on any roadway, bikeway, or shared-use path that is open to public travel and in their jurisdiction. Such entities will predominately be local governments – cities and counties.

After providing notice of the proposed rule amendments, and after soliciting public comments regarding the rule amendments, local governments express support for the adoption of this rule amendment.

(D) Identification of any opinions of the attorney general and reporter or any judicial ruling that directly relates to the rule or the necessity to promulgate the rule;

TDOT is not aware of any opinions of the Attorney General and Reporter or any judicial ruling that directly relates to this rule.

(E) An estimate of the probable increase or decrease in state and local government revenues and expenditures, if any, resulting from the promulgation of this rule, and assumptions and reasoning upon which the estimate is based. An agency shall not state that the fiscal impact is minimal if the fiscal impact is more than two percent (2%) of the agency's annual budget or five hundred thousand dollars ($500,000), whichever is less;

TDOT anticipates that this rule amendment will not result in an increase or decrease in revenues for state or local government revenues and expenditures.

(F) Identification of the appropriate agency representative or representatives, possessing substantial knowledge and understanding of the rule;

Leslie South, General Counsel

(G) Identification of the appropriate agency representative or representatives who will explain the rule at a scheduled meeting of the committees;

Jay Klein, Director of State & Congressional Legislative Affairs

(H) Office address, telephone number, and email address of the agency representative or representatives who will explain the rule at a scheduled meeting of the committees; and

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(I) Any additional information relevant to the rule proposed for continuation that the committee requests.

None.

TRANSPORTATION
UNIFORM TRAFFIC CONTROL DEVICES

CHAPTER 1680-03-01
ADOPTION OF THE TENNESSEE MANUAL ON UNIFORM TRAFFIC CONTROL DEVICES FOR STREETS AND HIGHWAYS

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1680-03-01-.02 Adoption of Manual on Uniform Traffic Control Devices

1680-03-01-.02 ADOPTION OF MANUAL ON UNIFORM TRAFFIC CONTROL DEVICES.

The current edition of the United States Department of Transportation, Federal Highway Administration, Manual on Uniform Traffic Control Devices for Streets and Highways (MUTCD), ~~2009 Edition~~11th Edition, 2023, is hereby adopted in its entirety and is incorporated herein by reference, with the following exceptions:

(1) Section 4C.01 paragraph 20 is not adopted and the following text shall be adopted in its place:

20 The safe and efficient movement of all road users is the primary consideration in the engineering study to determine whether to install a traffic control signal or to install some other type of control or roadway configuration. Installation of a traffic control signal does not necessarily result in improved safety in every case. In some cases, the installation of a traffic control signal at an inappropriate location could adversely impact safety for one or more types of road users. The purpose of the engineering study is to evaluate all of the factors that are relevant to a specific location.

~~Section 1A.09, Engineering Study and Engineering Judgment, of the 2009 Edition is not adopted and the following text, including language copied from the Guidance portion of Section 1A.09 of the 2003 Edition of the MUTCD, shall be adopted in its place: Section 1A.09 Engineering Study and Engineering Judgment 01 Definitions of an engineering study and engineering judgment are contained in Section 1A.13. Standard: 02 This Manual describes the application of traffic control devices, but shall not be a legal requirement for their installation. Guidance: 03 The decision to use a particular device at a particular location should be made on the basis of either an engineering study or the application of engineering judgment. Thus, while this Manual provides Standards, Guidance, and Options for design and application of traffic control devices, this Manual should not be considered a substitute for engineering judgment. 04 Engineering judgment should be exercised in the selection and application of traffic control devices, as well as in the location and design of the roads and streets that the devices complement. Jurisdictions with responsibility for traffic control that do not have engineers on their staffs should seek engineering assistance from others, such as the State transportation agency, their County, a nearby large City, or a traffic engineering consultant. Support: 05 As part of the Federal-aid Program, each State is required to have a Local Technology Assistance Program (LTAP) and to provide technical assistance to local highway agencies. Requisite technical training in the application of the principles of the MUTCD is available from the State's Local Technology Assistance Program for needed engineering guidance and assistance.~~

~~(2) The definition of Standard in Section 1A.13, Definitions of Headings, Words, and Phrases in the 2009 Edition is not adopted and the following text shall be adopted in its place: Section 1A.13 Definitions of Headings, Words, and Phrases in this Manual Standard. 01 When used in this Manual, the text headings of Standard, Guidance, Option, and Support shall be defined as follows:~~

~~A. Standard a statement of required, mandatory, or specifically prohibitive practice regarding a traffic control device. All Standard statements are labeled, and the text appears in bold type.~~

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~~The verb "shall" is typically used. The verbs "should" and "may" are not used in Standard statements. Standard statements are sometimes modified by Options.~~

~~B. Guidance-a statement of recommended, but not mandatory, practice in typical situations, with deviations allowed if engineering judgment or engineering study indicates the deviation to be appropriate. All Guidance statements are labeled, and the text appears in unbold type. The verb "should" is typically used. The verbs "shall" and "may" are not used in Guidance statements. Guidance statements are sometimes modified by Options.~~

~~C. Option-a statement of practice that is a permissive condition and carries no requirement or recommendation. Option statements sometime contain allowable modifications to a Standard or Guidance statement. All Option statements are labeled, and the text appears in unbold type. The verb "may" is typically used. The verbs "shall" and "should" are not used in Option statements.~~

~~D. Support-an informational statement that does not convey any degree of mandate, recommendation, authorization, prohibition, or enforceable condition. Support statements are labeled, and the text appears in unbold type. The verbs "shall," "should," and "may" are not used in Support statements. The remaining text of Section 1A.13, Definitions of Headings, Words, and Phrases in this Manual, in the 2009 Edition of the MUTCD is adopted and incorporated herein by reference.~~

~~(3) The United States Department of Transportation, Federal Highway Administration (FHWA), has authorized State MUTCDs to adopt the foregoing language in conformance with the 2003 MUTCD definition of Standard and the related Section 1A.09 Guidance statements, as provided in paragraphs (1) and (2) herein, while remaining in substantial compliance with the 2009 Edition of the MUTCD. See FHWA Official Interpretation Manual on Uniform Traffic Control Devices, 1(09)-1 (I) - Definition of Standard Statement, October 1, 2010.~~

Authority: T.C.A. § 54-5-108(b).

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